

2:00 PM

LINE 15

25-CIV-08880 JOYCE TURCHETTI VS. AKIVA NIAMEHR, LLP

JOYCE TURCHETTI
LAW OFFICES OF AKIVA NAIMEH, LP

PRO SE
KATELYN P. DEMBOWSKI

DEFENDANT AKIVA NIAMEHR, LLP aka JACOBY AND MEYERS, LLP'S MOTION TO STRIKE PLAINTIFF JOYCE TURCHETTI'S FIRST AMENDED COMPLAINT

TENTATIVE RULING:

In light of the court's tentative ruling on the motion to compel arbitration and stay, the court declines to rule on the motion for lack of jurisdiction.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, counsel for Defendant Akiva Niamehr, LLP aka Jacoby and Meyers, LLP shall prepare, for the court's signature, a written order consistent with this ruling, pursuant to California Rules of Court, rule 3.1312, and shall provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court.

2:00 PM

LINE 16

25-CIV-09351

ALEXANDER ROWLAND, ET AL. VS. ACE FUNDING SOURCE LLC

ALEXANDER ROWLAND
ACE FUNDING SOURCE LLC

STEVEN J. MIRSKY
BARUCH C. COHEN

DEFENDANT'S MOTION TO ENFORCE MANDATORY FORUM SELECTION CLAUSE AND DISMISS OR STAY FOR
FORUM NON CONVENIENS

TENTATIVE RULING:

Defendant Ace Funding Source, LLC's ("Defendant") Renewed Motion to Enforce Mandatory Forum Selection Clause and Dismiss or Stay for Forum Non Conveniens is DENIED. The court finds that the forum selection clause contained in the Sale of Future Receipts Agreement between Plaintiff LernaLabs, Inc. ("LLI") and Defendant ("agreement") is not mandatory because it does not provide for exclusive jurisdiction in the New York courts.

Forum non conveniens is an equitable doctrine involving the discretionary power of a court to decline to exercise jurisdiction when it believes the action is more appropriately and justly tried elsewhere. (*Stangvik v. Shiley, Inc.* (1991) 54 Cal.3d 744, 751 (*Stangvik*)). A mandatory forum selection clause in an agreement is ordinarily given effect without any analysis of convenience, and the only question is whether enforcement of the clause would be unreasonable. (*Animal Film, LLC v. D.E.J. Productions, Inc.* (2011) 193 Cal.App.4th 466, 471.) If the clause merely provides for submission to jurisdiction and does not expressly mandate litigation exclusive in a particular forum, then the traditional forum non conveniens analysis applies. (*Ibid.*)

Defendant relies on *Korman v. Princess Cruise Lines, Ltd.* (2019) 32 Cal.App.5th 206, to argue that the forum selection clause is mandatory. The forum selection clause in the agreement in *Korman* stated that "All claims or disputes involving Emotional Harm, bodily injury, illness to or death of any Guest whatsoever, including without limitation those arising out of or relating to this Passage Contract or Your Cruise, shall be litigated before the United States District Courts for the Central District of California in Los Angeles, or as to those lawsuits over which the Federal Courts of the United States lack subject matter jurisdiction, before a court located in Los Angeles County, California, U.S.A., to the exclusion of the courts of any other country, state, city, municipality, county or locale." (*Id.*, at p. 210.)

In contrast, paragraph 20 of the agreement states:

Binding Effect, Governing Law, Venue and Jurisdiction. This Agreement shall be binding upon and inure to the benefit of Seller, Buyer, Guarantor and their respective successors and assigns, except that neither Seller nor Guarantor shall have the right to assign its respective rights hereunder or any interest herein without the prior written consent of Buyer which consent may be withheld in Buyer's sole discretion. Except as set
